

24CV05331 Juan Gutierrez v. JM Roofing Company, Inc., et al.

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-07-13

Motion: Motion for Summary Judgment; Motion to Appear and Testify at Deposition and Produce Documents/Request for Monetary Sanctions

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Tentative Ruling: Juan Gutierrez v. JM Roofing Company, Inc., et al.

Case Number

24CV05331

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 07/13/2026 - 10:00

Nature of Proceedings

Motion for Summary Judgment; Motion to Appear and Testify at Deposition and Produce Documents/Request for Monetary Sanctions

Tentative Ruling

Juan Gutierrez v. JM Roofing Company, Inc., et al.

Case No. 24CV05331

Hearing Date: July 13, 2026

HEARING: 1. Motion of Defendant Our Lady of Sorrows Roman Catholic Church for Summary Judgment

2. Motion of Defendants Our Lady of Sorrows Roman Catholic Church, Archdiocese of Los Angeles Education and Welfare Corporation, Archdiocese of Los Angeles Risk Management Corporation, and Archdiocese of Los Angeles Funeral and Mortuary Services Corporation for an Order Compelling Plaintiff Juan Gutierrez to Appear and Testify at Deposition and Produce Documents; Request for Monetary Sanctions

ATTORNEYS: For Plaintiff Juan Gutierrez.: Raymond Ghermezian

For Defendants Our Lady of Sorrows Roman Catholic Church, Archdiocese of Los Angeles Education and Welfare Corporation, Archdiocese of Los Angeles Funeral and Mortuary Services Corporation, and Archdiocese of Los Angeles Risk Management Corporation: Fred Grannis

For Defendant JM Roofing Company Inc. dba Action Roofing: Thomas Friedman

TENTATIVE RULING:

For the reasons set forth herein, the motion of Defendant Our Lady of Sorrows Roman Catholic Church for summary judgment is granted.

The motion of Defendants Our Lady of Sorrows Roman Catholic Church, Archdiocese of Los Angeles Education and Welfare Corporation, Archdiocese of Los Angeles Risk Management Corporation, and Archdiocese of Los Angeles Funeral and Mortuary Services Corporation for an Order Compelling Plaintiff Juan Gutierrez to Appear and Testify at Deposition and Produce Documents is taken off-calendar as moot.

Background:

This action was commenced on September 25, 2024, by the filing of the Judicial Council form complaint by plaintiff Juan Gutierrez against defendants JM Roofing Company, Inc. dba Action Roofing ("JM Roofing"), Our Lady of Sorrows Roman Catholic Church ("Our Lady of Sorrows"), Archdiocese of Los Angeles Education and Welfare Corporation ("ADLAEWC"), Archdiocese of Los Angeles Funeral and Mortuary Services Corporation ("ADLAFMSC"), and Archdiocese of Los Angeles Risk Management Corporation ("ADLARMC") (collectively "the Church defendants") for General Negligence and Premises Liability.

The complaint alleges that on October 19, 2022, plaintiff was acting within the course and scope of his employment with the Church and was in the process of installing a water pump at Our Lady of Sorrows when a Doe defendant negligently set up a ladder at an unsafe proximity to plaintiff and dropped, or caused to fall, a large heavy object which struck plaintiff on the head causing him injuries.

JM Roofing answered the complaint on December 12, 2024, with a general denial and 20 affirmative defenses.

The Church defendants answered the complaint on December 27, 2024, with a general denial and 14 affirmative defenses.

On June 1, 2026, summary judgment was granted in favor of ADLAEWC.

On June 22, 2026, summary judgment was granted in favor of ADLARMC and ADLAFMSC.

On April 1, 2026, the Church defendants filed the present motion to compel the deposition of plaintiff and for monetary sanctions in the amount of \$2,721.18.

On April 2, 2026, Our Lady of Sorrows filed the present motion for summary judgment.

Plaintiff was properly served with both motions but has not filed opposition or any other response to the motions.

Analysis:

Standard on Summary Judgment

A defendant's motion for summary judgment asks the court to determine that the entire action has no merit, and to terminate the action without the necessity of a trial. (Code Civ. Proc., § 437c, subd. (a).) The procedure enables the court to look behind the pleadings to determine whether the party against whom the motion is directed has evidence to back up the claims. The court must determine from the evidence presented that there is no triable issue as to any material fact, and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).)

"[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) There is no obligation on the opposing party to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing every element necessary to sustain an adjudication in his favor. (Consumer Cause, Inc. v. Smilecare (2001) 91 Cal.App.4th 454, 468.) "[W]e liberally construe plaintiff's evidentiary submissions and strictly scrutinize defendant's own evidence, in order to resolve any evidentiary doubts or ambiguities in plaintiff's favor." (Johnson v. American Standard, Inc. (2008) 43 Cal.4th 56, 64.)

"A defendant . . . has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant . . . has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Code Civ. Proc., § 437c, subd. (p)(2).)

In resolving the motion, the court may not weigh the evidence. (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 840.) Rather, the role of the trial court in resolving a summary judgment motion is to determine whether issues of fact exist, not to decide the merits of the issues. (Molko v. Holy Spirit Assn. (1988) 46 Cal.3d 1092, 1107.) A triable issue of material fact exists only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. (Aguilar v. Atlantic Richfield, supra, 25 Cal.4th at p. 850.) Any doubts as to the propriety of granting the motion should be resolved in favor of the party opposing the motion. (Molko v. Holy Spirit Assn., supra, 46 Cal.3d at p. 1107.)

Role of Pleadings

"The pleadings play a key role in a summary judgment motion." (Hutton v. Fidelity National Title Co. (2013) 213 Cal.App.4th 486, 493 (Hutton).) "The materiality of a disputed fact is measured by the pleadings [citations], which 'set the boundaries of the issues to be resolved at summary judgment.' [Citations.]" (Conroy v. Regents of University of California (2009) 45 Cal.4th 1244, 1250.) "Accordingly, the burden of a defendant moving for summary judgment only requires that he or she negate plaintiff's theories of liability as alleged in the complaint; that is, a moving party need not refute liability on some theoretical possibility not included in the pleadings. [Citations.]" (Hutton, supra, 213 Cal.App.4th at p. 493.)

As relevant to the present motion, plaintiff's causes of action against Our Lady of Sorrows are: (1) negligence and (2) premises liability.

Separate Statement

"Code of Civil Procedure section 437c, subdivision (b)(1), requires each motion for summary judgment to be accompanied by a separate statement " 'setting forth plainly and concisely all material facts that the moving party contends are undisputed. Each of the material facts stated shall be followed by a reference to the supporting evidence.' " California Rules of Court, rule 3.1350(d)(2)4 states: " 'The separate statement should include only material facts and not any facts that are not pertinent to the disposition of the motion.' " Under the Rules of Court, " ' "Material facts' " are facts that relate to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion and that could make a difference in the disposition of the motion.' " (Rule 3.1350(a)(2).)" (Beltran v. Hard Rock Hotel Licensing, Inc. (2023) 97 Cal.App.5th 865, 874-875.)

"The point of the separate statement is not to craft a narrative, but to be a concise list of the material facts and the evidence that supports them. " 'The separate statement serves two important functions in a summary judgment proceeding: It notifies the parties which material facts are at issue, and it provides a convenient and expeditious vehicle permitting the trial court to hone in on the truly disputed facts.' " [Citation.]" (Beltran v. Hard Rock Hotel Licensing, Inc., supra, 97 Cal.App.5th at page 875.)

"The duty to comply with the law regarding separate statements applies to both sides of a motion for summary judgment or adjudication. The opposing party's responses to the separate statement must be in good faith, responsive, and material. Responses should directly address the fact stated, and if that fact is not in dispute, the opposing party must so admit. It is completely unhelpful to evade the stated fact in an attempt to create a dispute where none exists." (Beltran v. Hard Rock Hotel Licensing, Inc., supra, 97 Cal.App.5th at page 875.)

"Separate statements serve a laudable purpose. As explained in Weil & Brown, California Practice Guide (The Rutter Group 1996) Civil Procedure Before Trial, paragraph 10:94.1, pp. 10–31, 10–32, these documents are 'intended to permit the judge to determine quickly whether the motion is supported by sufficient undisputed facts. If the opposing statement disputes an essential fact alleged in support of the motion, the judge merely has to review the evidence cited in support of that fact. This saves the judge from having to review all the evidentiary materials filed in support of and in opposition to the motion.' " (Kulesa v. Castleberry (1996) 47 Cal.App.4th 103, 113.)

Our Lady of Sorrows has set forth 11 facts that it contends are undisputed. All of the facts are supported by admissible evidence. The facts include:

"On October 19, 2022, Plaintiff Juan Gutierrez was injured at Our Lady of Sorrows Roman Catholic Church, located at 21 E. Sola Street in Santa Barbara."

"Plaintiff was an employee of Our Lady of Sorrows Roman Catholic Church and, when he was injured, he was working in the course and scope of his employment."

"At the time of Plaintiff's injury, Our Lady of Sorrows Roman Catholic Church was covered under a self-insured workers' compensation plan which provided workers' compensation benefits to its employees, including Plaintiff, for work-related injuries in accordance with Labor Code section 3700, subdivision (b)."

"Plaintiff has made a claim for worker's compensation benefits under the self-insured workers' compensation plan covering Our Lady of Sorrows Roman Catholic Church, and Plaintiff has received worker's compensation benefits for his injuries under that plan."

"Plaintiff's injury occurred when an employee of roofing contractor, Defendant JM Roofing Company, Inc., dba Action Roofing, carelessly dropped a tool, which fell and struck Plaintiff in the head."

"Defendant JM Roofing was hired by Our Lady of Sorrows to perform roofing work to its Church, and the subject incident occurred in the course of the roofing work being performed by JM Roofing at the subject premises."

"At the time of his injury, Plaintiff Juan Gutierrez was working at Our Lady of Sorrows Roman Catholic Church to install a water pump in one of the Church's basement wells. This work was being performed by Mr. Gutierrez as part of his duties as Janitor for Our Lady of Sorrows Roman Catholic Church and Mr. Gutierrez was being paid by Our Lady of Sorrows Roman Catholic Church to perform this work."

"The Complaint filed by Plaintiff Juan Gutierrez on September 25, 2024, alleges causes of action against Defendant Our Lady of Sorrows Roman Catholic Church for negligence and premises liability."

"Plaintiff's negligence and premises liability causes of action are based on the same operative facts. Both causes of action seek damages for the personal injury plaintiff suffered in the course and scope of his employment on October 19, 2022."

"In its answer to Plaintiff's complaint, Our Lady of Sorrows Roman Catholic Church has asserted workers' compensation exclusivity under Labor Code section 3602(a) as an affirmative defense to Plaintiff's personal injury claims."

"Our Lady of Sorrows served Plaintiff with written discovery, including form interrogatories, special interrogatories, and requests for admission, calling for Plaintiff to disclose the evidentiary basis for his causes of action against Our Lady of Sorrows. Plaintiff's responses merely restate the conclusory allegations of his complaint, without identifying or articulating any evidentiary basis for his personal injury claims against Our Lady of Sorrows or for excepting his claim from workers' compensation exclusivity."

"The opposition papers shall include a separate statement that responds to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed. The statement also shall set forth plainly and concisely any other material facts the opposing party contends are disputed. Each material fact contended by the opposing party to be disputed shall be followed by a reference to the supporting evidence. Failure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court's discretion, for granting the motion." (Code Civ. Proc., § 437c, subd. (b)(3).)

As noted above, plaintiff has not filed opposition to the motion. As plaintiff did not comply with Code of Civil Procedure section 437c, subdivision (b)(3), the facts will be deemed undisputed.

The basis for Our Lady of Sorrows' motion is that plaintiff's claims are barred by the exclusive remedy of workers' compensation under Labor Code sections 3601, subdivision (a) and 3602, subdivision (a).

"(a) Liability for the compensation provided by this division, in lieu of any other liability whatsoever to any person except as otherwise specifically provided in Sections 3602, 3706, and 4558, shall, without regard to negligence, exist against an employer for any injury sustained by his or her employees arising out of and in the course of the employment and for the death of any employee if the injury proximately causes death, in those cases where the following conditions of compensation concur:

(1) Where, at the time of the injury, both the employer and the employee are subject to the compensation provisions of this division.

(2) Where, at the time of the injury, the employee is performing service growing out of and incidental to his or her employment and is acting within the course of his or her employment.

(3) Where the injury is proximately caused by the employment, either with or without negligence.

(4) Where the injury is not caused by the intoxication, by alcohol or the unlawful use of a controlled substance, of the injured employee. As used in this paragraph, "controlled substance" shall have the same meaning as prescribed in Section 11007 of the Health and Safety Code.

(5) Where the injury is not intentionally self-inflicted.

(6) Where the employee has not willfully and deliberately caused his or her own death.

(7) Where the injury does not arise out of an altercation in which the injured employee is the initial physical aggressor.

(8) Where the injury is not caused by the commission of a felony, or a crime which is punishable as specified in subdivision (b) of Section 17 of the Penal Code, by the injured employee, for which he or she has been convicted.

(9) Where the injury does not arise out of voluntary participation in any off-duty recreational, social, or athletic activity not constituting part of the employee's work-related duties, except where these activities are a reasonable expectancy of, or are expressly or impliedly required by, the employment. The administrative director shall promulgate reasonable rules and regulations requiring employers to post and keep posted in a conspicuous place or places a notice advising employees of the provisions of this subdivision. Failure of the employer to post the notice shall not constitute an expression of intent to waive the provisions of this subdivision. (Lab. Code, § 3600, subd. (a)(1)-(9).)

Based on the undisputed facts, the conditions of compensation set forth in Labor Code section 3600 existed at the time of the incident as between plaintiff and Our Lady of Sorrows, and no exceptions apply.

"Where the conditions of compensation set forth in Section 3600 concur, the right to recover such compensation, pursuant to the provisions of this division is, except as specifically provided in this section, the exclusive remedy for injury or death of an employee against any other employee of the employer acting within the scope of his or her employment . . ." (Lab. Code, § 3601, subd. (a).)

"Where the conditions of compensation set forth in Section 3600 concur, the right to recover compensation is, except as specifically provided in this section and Sections 3706 and 4558, the sole and exclusive remedy of the employee or his or her dependents against the employer. The fact that either the employee or the employer also occupied another or dual capacity prior to, or at the time of, the employee's industrial injury shall not permit the employee or his or her dependents to bring an action at law for damages against the employer." (Lab. Code, § 3602, subd. (a).)

"The California's workers' compensation system is a comprehensive statutory scheme through which employees may receive prompt compensation for costs related to injuries incurred in the course and scope of their employment. (Lab. Code, § 3200 et seq.; see *Charles J. Vacanti, M.D., Inc. v. State Comp. Ins. Fund* (2001) 24 Cal.4th 800, 810 (Vacanti).) The system is premised on a theoretical exchange we have called the " 'compensation bargain.' " (Shoemaker v. Myers (1990) 52 Cal.3d 1, 16.) Under this bargain, " 'the employer assumes liability for industrial personal injury or death without regard to fault in exchange for limitations on the amount of that liability. The employee is afforded relatively swift and certain payment of benefits to cure or relieve the effects of industrial injury without having to prove fault but, in exchange, gives up the wider range of damages potentially available in tort.' " (Ibid.)

To effectuate this exchange, the WCA limits an employee's remedies for covered injuries. When the statutory conditions for recovery are met, an employer's liability to pay compensation under the WCA is " 'in lieu of any other liability whatsoever to any person.' " (Lab. Code, § 3600, subd. (a).) Similarly, with limited exceptions not relevant here, " 'the right to recover compensation is . . . the sole and exclusive remedy of the employee or his or her dependents against the employer.' " (Lab. Code, § 3602, subd. (a).)" (Kuciemba v. Victory Woodworks, Inc. (2023) 14 Cal.5th 993, 1005 - 1006.)

Our Lady of Sorrows has met its burden of establishing a complete defense to plaintiff's action against it. As such, summary judgment will be granted.

Motion to Compel Deposition

As all moving parties have been granted summary judgment in their favor, the motion to compel plaintiff's deposition will be taken off-calendar as moot. Under the circumstances, the court would find it unjust to impose further monetary sanctions against plaintiff.

Judges

Judge Colleen Sterne

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